

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
TERRANCE HOBBS,

SUMMONS

Plaintiff,

Index No.:

Date Filed:

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, SERGEANT
JOHN FENG and POLICE OFFICER IVAN
CALERO,Plaintiff designates New York County
as the place of trial.The basis of venue designated is
plaintiff's residence.

Defendants.

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on plaintiff's attorneys within 20 days after service of this summons, exclusive of the date of service, or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, Judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
August 9, 2017

Yours, etc.,


By: Sagar Chadha, Esq.
THE PERECMAN FIRM, PLLC
Attorneys for Plaintiff
250 West 57th Street, Suite 401
New York, New York 10107
(212) 977-7033

DEFENDANTS' ADDRESSES:

COMPTROLLER OF THE CITY OF NEW YORK
Municipal Building
1 Centre Street, Room 1225
New York, New York 10007

THE CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

SERGEANT JOHN FENG
c/o THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER IVAN CALERO
c/o THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TERRANCE HOBBS,

VERIFIED COMPLAINT

Plaintiff,

Index No.

Date Filed:

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, SERGEANT
JOHN FENG and POLICE OFFICER IVAN
CALERO,

Defendants.

-----X

Plaintiff, by his attorneys, **THE PERECMAN FIRM, PLLC**, complaining of the
Defendants herein, respectfully show to this Court, and allege as follows:

1. This is an action to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to the plaintiff by the Fourth and Fourteenth Amendments to the Constitution of the United States pursuant to 42 U.S.C. § 1983.

2. Plaintiff TERRANCE HOBBS is a resident of the State of New York, residing in the County of New York, City and State of New York.

3. At all times referred to herein, Defendant, SERGEANT JOHN FENG, was a member of the NEW YORK CITY POLICE DEPARTMENT ("NYPD") and was employed by and was an agent of the CITY OF NEW YORK ("CITY").

4. At all times referred to herein, Defendant, POLICE OFFICER IVAN CALERO, was a member of the NYPD and was employed by and was an agent of the CITY.

5. Upon information and belief, at all times hereinafter mentioned, the CITY was and still is a municipal corporation duly organized and existing as such under and by the virtue of the laws of the State of New York.

6. Upon information and belief, at all times hereinafter mentioned the NYPD, is a department/political subdivision of Defendant CITY and is a municipal entity duly organized and existing under and by the virtue of the laws of the State of New York.

7. Upon information and belief, at all times hereinafter mentioned, the individual Defendants to this action were acting for, upon, and in furtherance of the business of the NYPD and the CITY and within the scope of their employment.

8. Upon information and belief, that at all times hereinafter mentioned, the CITY, its agents, servants and employees operated, maintained and controlled the NYPD, including all the police officers and employees thereof.

9. The NYPD is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the commissioner of the NYPD is responsible for the policies, practices and customs of the NYPD as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees and is the final decision maker for that agency.

10. This action arises under the United States Constitution, particularly under the provisions of the Fourth and Fourteenth Amendments of the Constitution of the United States, and under Federal Law, particularly the Civil Rights Act, Title 42 of the United States Code, §1983, as well as the common law of the State of New York.

11. That a Notice of Claim, annexed as Exhibit "1" was served on Defendants CITY and NYPD on or about January 25, 2017.

12. That on March 30, 2017 an examination of Plaintiff pursuant to New York General Municipal Law section 50-h was conducted by Defendant CITY, and that as of this date more than thirty days later Plaintiff's demand for payment and compensation has not yet been addressed by Defendants.

13. That this action is commenced within one year and ninety days of the conduct giving rise to this litigation.

14. That each and all of the acts of Defendants alleged herein were done by Defendants as state actors acting under the color of law.

STATEMENT OF FACTS

15. On August 23, 2014 at approximately 11:59 p.m. Plaintiff was standing alone at the intersection of Hunts Point Avenue and Southern Boulevard in the County of Bronx, New York when he was stopped by NYPD Police Officers, including but not limited to Defendant, Ivan Calero.

16. Plaintiff was immediately put into handcuffs, arrested, and placed into the rear of a marked NYPD radio motor patrol vehicle.

17. Plaintiff was not told why he was being arrested and detained.

18. Plaintiff was not in physical possession of any weapons or firearms, nor were any weapons or firearms located on his person, at the time of his arrest.

19. Plaintiff was charged with, among other crimes, Attempted Murder in the second degree, Assault in the first degree, Criminal Use of a Firearm in the second degree, Criminal Possession of a Weapon in the second degree and Criminal Possession of a Firearm, by the New York City Police Department, including Defendant Sergeant John Feng and Defendant Police Officer Ivan Calero.

20. Plaintiff was confined to the 41st precinct in Bronx County, New York for approximately two (2) days prior to being arraigned.

21. Plaintiff was confined to the Central Booking Bronx County, New York for approximately one (1) day prior to being arraigned.

22. After plaintiff's arrest on August 23, 2014, he remained incarcerated for approximately one year.

23. The charges against Plaintiff were dismissed on October 27, 2016 by Honorable Judge Miriam R. Best of the Supreme Court of the State of New York, Bronx County (case number 02725-2014).

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. §1983 AND THE FOURTH AND
FOURTEENTH AMENDMENTS VIA
FALSE ARREST/FALSE IMPRISONMENT

24. Plaintiff, TERRANCE HOBBS, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

25. That Plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. §1983, in that Plaintiff was subjected to a false arrest and false imprisonment by Defendants.

26. That Defendants, their agents, servants and employees confined Plaintiff in that Plaintiff was not free to leave, Defendants intended to confine Plaintiff, Plaintiff was conscious of the confinement, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

27. That by reason of Defendants' unlawful arrest, imprisonment and confinement of the Plaintiff, the Plaintiff was deprived of his rights, privileges and immunities under the Fourth and Fourteenth Amendments of the United States Constitution.

28. That the false arrest, false imprisonment and confinement of the Plaintiff was caused by Defendants without any legal justification, without any authority of the law, and without any reasonable cause or belief that the Plaintiff was in fact guilty of the crimes for which he was charged.

29. That Defendants knew of the false arrest, false imprisonment and confinement and continued to allow and/or participate in the arrest, imprisonment and confinement of the Plaintiff, and who, either directly participated in the violation of Plaintiff's rights or who, after learning of the violations of his rights, failed to remedy the wrongs, are liable to the Plaintiff for the violation of his rights pursuant to the Fourth Amendment.

30. That by reason of the aforesaid, Plaintiff TERRANCE HOBBS, was damaged in an amount which exceeds jurisdictional limits of all lower Courts which might otherwise have jurisdiction, and is entitled to an award of attorney's fees pursuant to 42 U.S.C. §1988.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. §1983 AND THE FOURTH AND
FOURTEENTH AMENDMENTS VIA MALICIOUS PROSECUTION

31. Plaintiff, TERRANCE HOBBS, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

32. Plaintiff, TERRANCE HOBBS, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

33. That the Plaintiff's rights have been violated under the Fourth Amendment of the United States Constitution pursuant to 42 U.S.C. §1983, in that Plaintiff was maliciously prosecuted by Defendants.

34. That the said malicious prosecution was initiated by Defendants, their agents, servants and employees, without any legal justification and without probable cause in that Defendants caused the commencement and continuation of criminal proceedings against the Plaintiff, and in that the action was commenced and continued intentionally and with malice and deliberate indifference to Plaintiff's rights.

35. That by reason of the unlawful malicious prosecution, the Plaintiff was subjected to pecuniary harms, great indignities, humiliation, anxiety, he was detained, forced to spend time in jail, forced to make court appearances, incur attorneys' fees and be subject to numerous other harms.

36. The malicious prosecution was terminated in Plaintiff's favor on October 27, 2016, when plaintiff was released from custody with all charges against Plaintiff being dismissed.

37. That supervisors within Defendant NYPD, who knew of the malicious prosecution and continued to allow and/or participate in the prosecution of the Plaintiff and who either directly participated in the violation of Plaintiff's rights, or who after learning of the violation failed to remedy the wrongs, are liable to the Plaintiff for the violation of his rights pursuant to the Fourth Amendment.

38. That by reason of the aforesaid, Plaintiff TERRANCE HOBBS, was damaged in an amount which exceeds jurisdictional limits of all lower Courts which might otherwise have jurisdiction, and is entitled to an award of attorney's fees pursuant to 42 U.S.C. §1988.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF FOR
VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO
42 U.S.C. §1983 AND THE FOURTH AND
FOURTEENTH AMENDMENTS BY THE CITY OF NEW YORK (MONELL
CLAIM)

39. Plaintiff, TERRANCE HOBBS, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

40. That the Plaintiff's rights have been violated under the Fourth Amendment to the United States Constitution as made applicable to the states via the Fourteenth Amendment by Defendant, CITY.

41. Defendant CITY acted with a callous, reckless and deliberate indifference to Plaintiff's rights under the Constitution and laws of the United States, in that they failed to adequately discipline, sanction, train, retrain, investigate, supervise or otherwise direct police officers concerning the rights of citizens, thereby causing SERGEANT JOHN FENG and POLICE OFFICER IVAN CALERO, the Defendant officers in this case, to engage in the above-mentioned conduct.

42. Defendant CITY has with deliberate indifference failed to properly train, investigate, sanction and retrain police officers, despite their knowledge of the recurring problem of violations of the Constitutional rights of citizens by their use of the "stop and frisk" police and officers routinely generating false charges as well as by the ongoing failure of members of the NYPD to intervene to prevent violations of individuals' rights by other officers and in so failing Defendant CITY has caused, encouraged, condoned and allowed Defendants in this case to engage in the aforementioned unlawful conduct without fear of consequences for their illegal acts, which did cause the Plaintiff to be subjected to deprivations of his civil rights.

43. That the officers employed by Defendant CITY have so consistently violated individuals' rights via the "stop and frisk" policy and generating of false charges that a federal investigation into rampant civil rights abuses by the NYPD was conducted and/or is ongoing.

44. That because SERGEANT FENG and POLICE OFFICER CALERO, the Defendant officers in this matter had no fear of internal reprisals for violating individuals' rights, they did in fact violate the Plaintiff's rights in the instant matter and they did compound their violations of these rights by subjecting him to unlawful imprisonment and confinement and by falsely alleging he had committed crimes.

45. That by reason of the CITY's deliberate indifference to the violations of Plaintiff's civil rights, Plaintiff was subject to unlawful imprisonment and confinement, Plaintiff was falsely arrested, confined and maliciously prosecuted, he was subject to humiliation, embarrassment, anxiety, defamation in the community, he as confined and forced to appear in court and he was and is still subjected to various ongoing physical and emotional harms.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF UNDER NEW YORK STATE LAW FOR
MALICIOUS PROSECUTION

46. Plaintiff, TERRANCE HOBBS, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

47. That the Plaintiff's rights have been violated under the laws of the State of New York in that Plaintiff was maliciously prosecuted by Defendants.

48. That said malicious prosecution was initiated by Defendants, their agents, servants and employees, without any legal justification and without probable cause in that

Defendants caused the commencement and continuation of criminal proceedings against Plaintiff, and in that the action was commenced and continued intentionally and with malice and deliberate indifference to Plaintiff's rights.

49. That by reason of the unlawful malicious prosecution, Plaintiff was subjected to pecuniary harms, great indignities, humiliation, anxiety, he was detained, forced to spend time in jail, forced to make court appearances, and be subject to numerous other harms.

50. The malicious prosecution was terminated in Plaintiff's favor on October 27, 2016 when all charges against Plaintiff were dismissed.

51. That supervisors within Defendant NYPD, who knew of the malicious prosecution and continued to allow and/or participate in the prosecution of the Plaintiff and who either directly participated in the violation of Plaintiff's rights, or who after learning of the violation failed to remedy the wrongs, are liable to Plaintiff for violation of his rights.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF UNDER NEW YORK STATE LAW FOR FALSE
ARREST/IMPRISONMENT

52. Plaintiff, TERRANCE HOBBS, repeats, reiterates and realleges each and every allegation contained in the prior paragraphs with the same force and effect as if more fully and at length set forth herein.

53. That the Plaintiff's rights have been violated under the laws of the State of New York in that Plaintiff was falsely arrested and/or imprisoned.

54. That said arrest and imprisonment was initiated by Defendants, their agents, servants and employees, without any legal justification and without probable cause in that Defendants intended to confine Plaintiff by placing him under arrest.

55. That Plaintiff was conscious of the confinement.

56. That Plaintiff was physically constrained and he was not free to leave.

57. That Plaintiff did not consent to the confinement.

58. That Plaintiff's confinement was not privileged in that his arrest was without warrant.

59. That Plaintiff's confinement was not justified.

60. That Plaintiff's physical detention lasted for approximately one year.

WHEREFORE, Plaintiff TERRANCE HOBBS demands judgment against the Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, SERGEANT JOHN FENG and POLICE OFFICER IVAN CALERO, in an amount which exceeds jurisdictional limits of all lower Courts which might otherwise have jurisdiction on the First, Second, Third, Fourth and Fifth Causes of Action; all together with the costs, disbursements and attorney's fees of this action.

Dated: New York, New York
August 9, 2017

Yours, etc.,



By: Sagar Chadha, Esq.
THE PERECMAN FIRM, PLLC
Attorneys for Plaintiff
250 West 57th Street, Suite 401
New York, New York 10107
(212) 977-7033

VERIFICATION

STATE OF NEW YORK)
 : ss.
COUNTY OF NEW YORK)

Terrance Hobbs , being duly sworn, deposes and says:

Deponent is a plaintiff in the within action; deponent has read the foregoing Verified Complaint, and knows the contents thereof; that same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, deponent believes it to be true.

Terrance Hobbs

Sworn and Subscribed to
before me this the 9th day of
August , 2017

Linda B. Hirschfeld

LINDA B. HIRSCHFELD
NOTARY PUBLIC, State of New York
No. 01H16232170
Qualified in New York County
Commission Expires December 6th, 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK Index No.

TERRANCE HOBBS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, SERGEANT JOHN FENG
and POLICE OFFICER IVAN CALERO,

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Perecman Firm, P.L.L.C.
Attorneys for Plaintiff,
TERRANCE HOBBS
250 West 57th Street, Suite 401
New York, New York 10107
(212) 977-7033 FAX (212) 977-7035

To: Service of a copy of the within is hereby admitted.

CERTIFICATION BY ATTORNEY

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, the undersigned, an attorney duly admitted to practice in the Courts of the State of New York, certify that, upon information and belief, formed after an inquiry reasonable under the circumstances, the presentation of the attached **SUMMONS and VERIFIED COMPLAINT** and the contentions contained therein are not frivolous, as that term is defined in Section 130.1.1(c) of the rules of the Chief Administrator.

Dated: New York, New York
August 9, 2017


SAGAR CHADHA

PLEASE TAKE NOTICE:

___ Notice of Entry
___ Notice of Settlement

Yours, etc.,

The Perecman Firm, P.L.L.C.